



CHAPTER xvi.

An Act to incorporate the Hampton-in-Arden and Meriden Gas Company and to enable that Company to supply with gas certain parishes in the county of Warwick. A.D. 1904.
[24th June 1904.]

WHEREAS there is no adequate supply of gas to the parishes of Hampton-in-Arden and Meriden in the county of Warwick and it is expedient that a supply of gas should be afforded to the inhabitants of those parishes :

And whereas the persons in that behalf in this Act named with others are willing on being incorporated into a Company with the necessary powers for such purposes to undertake the supply of gas to such parishes and places and it is expedient that they should be incorporated accordingly and authorised to acquire land and to construct gasworks as by this Act provided and that such other powers as are in this Act contained should be conferred on them for the better and more effectually carrying the purposes of this Act into effect :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited for all purposes as the Hampton-in-Arden Gas Act 1904. Short title.

2. The following Acts and parts of Acts (so far as they are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act Incorporation of general Acts.

A.D. 1904. — namely the Companies Clauses Consolidation Act 1845 (except the provisions relating to the conversion of borrowed money into capital) Part I. (relating to cancellation and surrender of shares) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts the Lands Clauses Acts except such clauses thereof as relate to the compulsory purchase of land and the Gasworks Clauses Acts 1847 and 1871 Provided that section 13 of the former Act shall be read as if the words “or any premises” were inserted after the words “private building.”

Interpreta-
tion.

3. In this Act the several words and expressions hereinafter mentioned have the meanings hereby assigned to them unless there be something in the subject or context repugnant to such construction (that is to say) :—

Words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings ;

The expression “the Company” means the Company incorporated by this Act ;

The expression “the gasworks” means and includes the gasworks and works connected therewith by this Act authorised to be constructed or maintained ;

The expression “the undertaking” means and includes the gasworks and all lands buildings estate right title property privileges and effects and the undertaking of the Company and every part thereof.

Company
incorporated.

4. Charles Hibbert Binney Edwin Richard Painter William Bentham Martin and all other persons who have already subscribed to or shall hereafter become proprietors in the undertaking and their executors administrators successors and assigns respectively shall be and are hereby united into a company for the purposes of this Act and for those purposes shall be and are hereby incorporated by the name of “The Hampton-in-Arden and Meriden Gas Company” and by that name shall be a body corporate with perpetual succession and a common seal and with power to purchase take hold and dispose of lands and other property for the purposes of this Act.

General
purposes of
Company.

5. The Company shall be established for the purpose of manufacturing and supplying gas for lighting heating motive power and other purposes within the limits of this Act and may provide produce sell dispose of and deal in gas coke tar and all

other residual products resulting from the manufacture of gas and generally may carry on the business usually carried on by a gas company. A.D. 1904.

6. The limits of this Act for the supply of gas shall be the parishes of Hampton-in-Arden and Meriden in the county of Warwick. Limits of
Act.

7. The capital of the Company shall be fifteen thousand pounds in three thousand shares of five pounds each. Capital.

8. Except as otherwise expressly provided by this Act the Company shall not issue any share created under the authority of this Act nor shall any such share vest in the person accepting the same unless and until a sum not being less than one fifth of the amount of such share is paid in respect thereof. Shares not
to be issued
until one
fifth paid up.

9. One fifth of the amount of a share shall be the greatest amount of a call and two months at least shall be the interval between successive calls. Calls.

10. The Company may from time to time borrow on mortgage of the undertaking any sums not exceeding in the whole five thousand pounds in respect of the capital by this Act authorised or they may (subject to the conditions hereinafter contained) borrow from time to time not exceeding one thousand pounds in respect of each portion of capital not exceeding three thousand pounds issued by the Company but no part of any such sum shall be borrowed until the whole capital or respective portion of capital in respect of which it is to be borrowed is issued and accepted and one half thereof is paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that the whole of such capital or portion of capital has been issued and accepted and that one half thereof has been paid up and that not less than one-fifth part of the amount of each separate share in such capital or portion of capital has been paid on account thereof before or at the time of the issue or acceptance thereof and that such capital or portion of capital was issued bonâ fide and is held by the persons or corporations to whom the same was issued or their executors administrators successors or assigns and that such persons or corporations their executors administrators successors or assigns are legally liable for the same and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that Power to
borrow.

A.D. 1904. — the proof aforesaid has been given which shall be sufficient evidence thereof.

For appointment of a receiver.

11. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than five hundred pounds in the whole.

Receipt in case of persons not sui juris.

12. If any money is payable to a shareholder or mortgagee or debenture stock holder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge of the Company.

Debenture stock.

13. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time created and issued or granted by the Company under this or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

Application of moneys.

14. All moneys raised under this Act whether by shares debenture stock or borrowing shall be applied only for the purposes of this Act to which capital is properly applicable.

First ordinary meeting.

15. The first ordinary meeting of the Company shall be held within six months after the passing of this Act.

Number of directors.

16. The number of directors shall be five but the Company may vary the number provided that the number be not at any time more than seven or less than three.

Qualification of directors.

17. The qualification of a director shall be the possession in his own right of not less than forty shares.

Quorum.

18. The quorum of a meeting of directors shall be three.

Directors.

19. Edwin Richard Painter Charles Hibbert Binney William Bentham Martin and any two other persons to be nominated

by them or the majority of them and consenting to such nomination shall be the first directors of the Company and shall continue in office until the first ordinary meeting held after the passing of this Act At that meeting the shareholders present in person or by proxy may either continue in office the directors appointed by this Act or nominated as aforesaid or any of them or may elect a new body of directors or directors to supply the place of those not continued in office the directors appointed by this Act or nominated as aforesaid being if qualified eligible for re-election and at the first ordinary meeting to be held in every year after the first ordinary meeting the shareholders present in person or by proxy shall (subject to the power hereinbefore contained for varying the number of directors) elect persons to supply the places of the directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are elected in their stead in manner provided by the same Act.

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20. The Company may by agreement take purchase and hold for the general purposes of the undertaking any lands not exceeding in the whole five acres in extent or any easement (not being an easement or right of water in which other parties than the grantors have an interest) in over or under any such lands but the Company shall not upon any such lands create or permit any nuisance and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands described in the Schedule to this Act.

Purchase of
lands by
agreement.

21. Subject to the provisions of this Act the Company may on the lands described in the Schedule to this Act erect lay down provide and from time to time maintain alter improve enlarge extend and renew or discontinue gasworks retorts gasometers manufactories condensers scrubbers exhausters purifiers gasholders tanks receivers drains sewers mains pipes meters lamps lamp-posts burners stop-cocks machinery and other works and apparatus and conveniences and may do all such acts as they may think proper for making and storing gas and for supplying gas within the limits of this Act and may make store and supply gas accordingly and may manufacture sell provide supply and deal in coke tar and all other products or residuum of any materials employed in or resulting from the manufacture of gas.

Powers as to
construction
and main-
tenance of
gasworks.

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Power to
lay pipes in
streets not
dedicated to
public use.

22. The Company may on the application of the owner or occupier of any premises within the limits of this Act abutting on or being erected in any street laid out but not dedicated to public use supply such premises with gas and may lay down take up alter relay or renew in across or along such street such pipes and apparatus as may be requisite or proper for furnishing such supply and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Power to
supply gas
fittings for
heating and
other pur-
poses.

23.—(1) The Company may sell let for hire or otherwise deal in fix repair and remove but shall not manufacture engines stoves ranges pipes and other fittings for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and do all work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon between the Company and the persons to or for whom the fittings are sold let fixed up repaired or removed.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

Maximum
price of gas.

24. The price to be charged by the Company for gas supplied by them shall not exceed five shillings per thousand cubic feet.

Pressure of
gas.

25. All gas supplied by the Company to any consumer of gas shall be supplied at such pressure as to balance a column of water from midnight to sunset not less than six tenths of an inch in height and from sunset to midnight not less than eight tenths of an inch in height at the main as near as may be to the junction therewith of the service pipe supplying such consumer and any gas examiner appointed under the Gasworks Clauses Act 1871 may

subject to the terms of his appointment test the pressure at which the gas is supplied and may for that purpose open any street road passage or place vested in or under the control of any local or road authority and the provisions of the Gasworks Clauses Act 1871 with reference to testing of gas and to penalties shall *mutatis mutandis* apply to such testing of pressure and at least three hours' previous notice shall be given to the Company of the time and place at which such testing shall be conducted. A.D. 1904.

26. No penalty shall be incurred by the Company for neglect or refusal to give a supply of gas in accordance with the provisions of this Act or for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which the court having cognizance of the case are of opinion that such neglect refusal insufficiency defect or excess was caused by an unavoidable cause or accident. Provided that want of funds shall not be deemed an unavoidable cause or accident. No penalty in case of unavoidable cause or accident.

27. The prescribed number of candles for gas shall be not less than fourteen. Quality of gas.

28. Within six months from the passing of this Act a testing place shall be provided at the works of the Company. Testing place.

29. The prescribed burner shall be Sugg's London Argand burner number one with a six-inch by one-and-three-quarter-inch glass chimney but if at any time and so long as the gas flame rises above the top of that glass a six-inch by two-inch chimney shall be used or any other burner or chimney approved for this purpose by the Board of Trade. Burner.

30. If any person is required by the Company to give to them security for the payment of the price or rent of a meter the Company shall pay interest after the rate of four pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands. Provided that the Company shall not require any deposit in respect of a prepayment meter. Company to pay interest on money deposited as security for meter.

31. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter Period of error in defective meters.

A.D. 1904. — The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Company.

Consumers
to give no-
tice to Com-
pany before
removing.

32. Twenty-four hours' notice in writing shall be given to the Company by every gas consumer before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be contained in or endorsed on every demand note for gas rent payable to the Company.

Power to
refuse supply
to persons in
debt for other
premises.

33. If a person requiring a supply of gas from the Company has previously quitted premises at which gas was supplied to him by the Company without paying to them all gas and meter rent due from time to time to the Company they may refuse to furnish to him a supply of gas until he pays the same.

Notice of
discontinu-
ance.

34. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the principal office for the time being of the Company.

Company
may contract
with local
authority for
supply in
bulk.

35. The Company may contract with any local authority company or person beyond the Company's limits of supply (but only with the consent in writing of the local authority of the district within which the supply is to be given and of any company or person supplying gas under parliamentary powers in that district) for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as shall be agreed upon.

Anti-fluctua-
tors for gas
engines.

36. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and if any consumer shall make default in complying with the provisions of this section the

Company may cease to supply him with gas The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

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37. The Company may purchase or take on lease dwelling-houses for persons in their employ and may erect and maintain dwelling-houses for such persons upon the lands for the time being belonging to or leased by the Company.

Dwelling-houses for persons in Company's employ.

38. The Company may acquire take and use any leave licence or authority to work use exercise and put in practice any invention under letters patent made or to be made granting any right or privilege of working using exercising or vending any invention in relation to the production utilisation and distribution of coal gas the production of coke tar pitch asphaltum ammoniacal oil sulphate of ammonia and the products from coal slack and other substances employed in or resulting from the manufacture of gas or otherwise in relation thereto but not so as to acquire any exclusive right to the working use exercising or putting in practice of any such invention.

Power to take out licences for use of patents.

39. The following provisions for the protection of the London and North Western Railway Company (hereinafter referred to as "the railway company") shall be in force and have effect:—

For protection of London and North Western Railway Company.

In laying down or executing or in effecting the repairs and renewals of any mains pipes or other works upon across over under or in any way affecting the railways lands or property now or hereafter belonging to or used or occupied by the railway company or the bridges approaches viaducts stations or other works or any level crossings over the railways of the railway company the same shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the railway company and only according to such plans to be submitted to and in such manner as shall be previously reasonably approved by him and in all things by and at the expense of the Company who also shall restore and make good the roads over any such bridges level crossings and approaches which the railway company are or may be liable to maintain and which may be disturbed or interfered with by or owing to any operations of the Company and all such works matters

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and things shall be constructed executed and done so as not to cause any injury to such railways bridges level crossings approaches viaducts stations works lands or property or interruption to the passage or conduct of traffic over such railways or at any station thereon And if any such injury or interruption shall arise from or be in any way owing to any of the acts operations matters and things aforesaid or the bursting leakage or failure of any such mains pipes or works the Company shall make compensation in respect thereof to the said railway company.

Costs of Act.

40. All costs charges and expenses of and incidental to the preparing for obtaining and passing this Act or otherwise in relation thereto shall be paid by the Company.

The SCHEDULE referred to in the foregoing Act.

GAS LANDS.

A piece of land in the parish of Hampton-in-Arden containing two acres more or less and being field numbered 344 on the 25-inch Ordnance map of that parish bounded on the east side by the high road leading past Hampton Junction.

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